

TRP(C)/7/2020 on 24 February, 2020

Author: D. Dash

Bench: D. Dash

TRP(C) NO. 07 OF 2020

03. 24.02.2020

This application has been filed by the petitioner-husband under section 24 of the Code of Civil Procedure for transfer of C.P. Case No. 306 of 2019, pending in the Family Court, Balasore.

Heard learned counsel for the petitioner.

Perused the averments taken in the petition as also the averments of the application filed by the opposite party under section 13 (1) of the Hindu Marriage Act for dissolution of her marriage with the petitioner.

The admitted factual settings of the case stands that the opposite party is now serving at Kolkata in the State of West Bengal and she has filed the application for dissolution of her marriage with the petitioner in the Family Court, Balasore in the State of Odisha which is at a distance of around 25 kms from the place of her service; whereas the petitioner is residing in the district of Jajpur which is at a distance of around 110 kms from the place where the court in seisin of the proceeding which is sought to be transferred situates and that is well communicated with Balasore both by road as well as rail.

Considering the submissions made and on going through the averments taken in the petition as also the documents annexed thereto, further keeping in view the admitted factual settings as stated above; this Court does

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not find any such ground to entertain the application with the prayer as has been advanced.

Accordingly, the application stands dismissed.

Issue urgent certified copy as per rules.

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D. Dash, J.

Narayan